Google's Shenanigans?

Or just a company defending its rights?

Aaron Greenspan is certainly gaining more and more infamy in web circles. His latest claim to fame involves suing Google for $761 and actually winning. Yes, it's not a life-changing sum of money but perhaps a quixotic endeavour. Never heard of Greenspan? He was the guy who a while ago claimed that he invented Facebook, and not Mark Zukerberg — the generally regarded founder of the social network. Greenspan's version of the story is that while at Harvard, his batchmate Zukerberg stole the idea from him. Greenspan had apparently first hit upon the idea while doing a project called HouseSystem — a set of online resources for Harvard students including a feature called "The Facebook". Greenspan even wrote a book about it titled *Authoritas: One Student's Harvard Admissions and the Founding of the Facebook Era*. Going by Zukerberg's latest antics with Facebook's privacy policy, it wouldn't be wrong to assume that there's no smoke without fire. But coming back to Greenspan's recent tryst with the other online giant — Google — the story is far more interesting. Before delving into the details however, remember this is all simply one person's claim against another entity.

It all began when Greenspan decided to subscribe to the Google Adwords service in the hope of popularising the aforementioned book via Google Search ads. He wanted his ad to be thrown up anytime someone ran a search that included the word Facebook. Google wouldn't allow this because Facebook is a trademark registered to Facebook. So, Greenspan filed a petition with the US Patent and Trademark Office claiming prior use of the word and even going back to the old slug match of accusing Zukerberg of fraud. The plea is still pending, but Greenspan believes that Facebook lobbied Google to implement this ban.

The story doesn't end here. Greenspan in the meantime signed up for Adsense, to be able to post ads on his own website. When people click on such ads Google works its series of arcane algorithms and deposits a sum into the Adsense holder's account. Greenspan was able to use this service for his website for a while until the company arbitrarily discontinued his account. He was given a standard automated response on his account page which said his membership in the program "posed a significant risk to our AdWords advertisers". Now this treatment is usually meted out to miscreants indulging in click fraud — which involves installing adSense on an empty site (a place holder domain) that gets a lot of traffic for some reason (probably owing to its name). The result is that the website gets a very high click-through rate from people with not much interest in the topics of the ads that they are clicking on. They are probably just clicking on them to exit the site.

Whether he was involved in click fraud is not clear but Google didn't offer Greenspan any explanation for axing his account and besides, all of his communication with the search company went unanswered. Note that the search giant has a clause in its terms of service, by which it reserves the right to cancel AdSense members accounts' for "any reason". When Greenspan was after all able to reach a real person in one of his attempts he was told "There's no one I'd be able to transfer you to", he writes on **Huffingtonpost.com**.

Finally frustrated, Greenspan filed a civil small claims case at the Santa Clara County courthouse for $721 — the amount accrued to his Adsense account before it got canned. At the hearing Google apparently sent over a greenhorn paralegal, who refused to divulge the reason for the termination of his account and rested her entire defence on the fact that "Google's terms of service specified that the company could terminate accounts for any reason". According to Greenspan the judge was not impressed and even went so far as to ask the paralegal "But you couldn't terminate my account because of the colour of my eyes, could you? I have brown eyes. You couldn't terminate my account because of that." The judge eventually threw the case out and according to Greenspan asked Google to pay his 721 plus another 40 dollars in court fees.

Whether the whole sordid affair happened exactly as per the version described by Greenspan is not very important. What is important is the underlying issues it throws up. Firstly, that Google's terms of service are arbitrary. Second, if Greenspan's website was thrown up automatically as a possible fraud by the application of an investigative algorithm, its detection system is flawed because moral intent cannot be understood through mathematical analysis. Third, as Greenspan argues — "terminating accounts for 'posing significant risk' just when they started to earn significant amounts of money seemed like a great way for Google to cut accounting liabilities in a difficult economic climate". And lastly none of this can be put under the scanner as AdWords and AdSense have limited reporting capabilities.

The gathering belief the world over is that Google and its affiliated companies are becoming some sort of an unapproachable shadowy cartel. But apart from that, this incident even has undertones of two biggies coming together to quash the little guy. ■

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